WORKPLACE VIOLENCE PREVENTION PLAN

The Hays Group

Adopted pursuant to California Labor Code § 6401.9 (SB 553)
Annual review required

Effective: October 1, 2026

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1. Purpose and Scope

This Workplace Violence Prevention Plan (the "Plan") is adopted by The Hays Group pursuant to California Labor Code § 6401.9 (SB 553). The Plan establishes a written, site-specific program to prevent and respond to workplace violence at all Hays Group workplaces in California.

1.1 Definitions

"Workplace violence" means any act of violence or threat of violence that occurs in a place of employment, including: the threat or use of physical force against an employee that results in, or has a high likelihood of resulting in, injury, psychological trauma, or stress, regardless of whether the employee sustains an injury; and an incident involving a threat or use of a firearm or other dangerous weapon, including the use of common objects as weapons.

Workplace violence is categorized by Cal/OSHA into four types:

Type 1 — Violence by a person who has no legitimate business at the worksite (stranger, criminal intent);

Type 2 — Violence by a customer, client, patient, passenger, or other person receiving services;

Type 3 — Violence by a present or former employee, supervisor, or manager (worker-on-worker);

Type 4 — Violence by a person who has a personal relationship with an employee (domestic violence that follows the employee to the worksite).

The Hays Group's workplaces include: corporate offices, equipment yards, active construction jobsites (public works and private), and locations where Hays Group employees are deployed under contract. This Plan applies to all of these workplaces.

1.2 Covered Employees

This Plan covers every California employee of The Hays Group companies: Hal Hays Construction, Inc. (California operations), Cal Pacific Constructors, Inc., Heritage Transportation, Inc., Golden Bear Equipment, Inc., Budget Electrical Contractors, Inc., Straight Arrow Traffic Control, Inc., Safe-Ex, Inc., and Golden State Subsurface Solutions. It also covers non-California employees during any period they are temporarily assigned to California work.

2. Plan Administration and Responsible Persons

The Hays Group has designated the following responsible persons for the implementation and maintenance of this Plan, consistent with Labor Code § 6401.9(c)(1):

Plan Administrator (HR)

Brian Grijalva, HR Generalist, and Desiree Tapia, HR Manager. HR is responsible for overall Plan administration, recordkeeping, training coordination, annual review, and coordination with law enforcement, external counsel, and insurers.

Corporate Safety Manager

Sergio Robles. Responsible for safety program integration, hazard assessment methodology, training content, corrective-action oversight, California site-specific hazard identification, jobsite coordination with other employers, and field incident response.

Safety Manager (AZ)

Eric Powers, reporting to the Corporate Safety Manager. Responsible for Arizona site hazard identification and field incident response. (Note: SB 553 applies in California; the Arizona Safety Manager is listed for coordination continuity.)

Executive Sponsor

Kirby Hays, President and CEO. Final authority on disciplinary actions, budget, and material changes to this Plan.

Designated On-Site Contact

At each active jobsite, yard, or office, the on-site foreman or superintendent (or, at offices, the senior manager present) is the designated on-site contact for this Plan. The designated on-site contact is responsible for addressing an emergency in the moment — initiating the emergency response procedures in Section 5, summoning law enforcement or medical aid, securing the scene, and promptly notifying the Corporate Safety Manager and the Plan Administrator.

The Plan Administrator is the primary point of contact for all Plan-related questions and reports. Contact information is posted at each California office, yard, and active jobsite. Reports may also be made to any supervisor, foreman, or Safety Manager, who is required to escalate to the Plan Administrator.

3. Employee Involvement

Consistent with Labor Code § 6401.9(c)(2), The Hays Group provides procedures for employee participation in the development and implementation of this Plan.

3.1 Integration with Pre-Task Plans and Tailgate Meetings

Employee involvement is integrated into the Company's existing Pre-Task Plan (PTP) and Tailgate meeting framework. At each daily Tailgate meeting, the foreman briefly addresses any workplace-violence-relevant hazards specific to that jobsite — including neighborhood context, public access to the work zone, prior incidents, and any site-specific security concerns — and solicits employee observations.

Quarterly, a focused WVPP refresher is included as the Tailgate topic across all active crews, covering: reporting procedures, recognition of warning signs, de-escalation, and updates to the Plan.

3.2 Suggestions and Feedback

Any employee may submit suggestions for Plan improvement at any time, without fear of retaliation, through any of the following channels:

- Orally to the foreman, Safety Manager, or HR (the oral report must be documented by the recipient);
- In writing (paper form available at every yard and office; completed forms returned to HR);
- By email to the Plan Administrator;
- Anonymously through the Company's complaint channel described in the main Handbook.

3.3 Annual Plan Review

The Plan Administrator convenes an annual review meeting with the Corporate Safety Manager, the Safety Manager (AZ), and a rotating representative group of field employees and office employees. The review assesses: the prior year's incidents and near-misses; training effectiveness; hazard corrections completed; and any needed Plan amendments. Meeting minutes are maintained for at least five (5) years.

4. Multi-Employer Jobsite Coordination

The Hays Group regularly performs work on multi-employer jobsites, including as a subcontractor to general contractors, as a prime contractor to public agencies, and in collaboration with other trades. Consistent with Labor Code § 6401.9(c)(3), the Company coordinates implementation of this Plan with other employers at multi-employer worksites.

4.1 Pre-Job Coordination

At the pre-job conference or mobilization meeting, the Corporate Safety Manager or designee raises workplace violence prevention as a coordination topic, and exchanges the following with the controlling employer and other on-site employers: the WVPP Plan Administrator contact; emergency response procedures for the site; lines of communication with law enforcement; and known site-specific risks (public access, prior incidents, crime context).

Where the controlling employer has its own WVPP, The Hays Group's employees follow the controlling employer's site-specific procedures where they exist, supplemented by this Plan where the controlling employer's Plan is silent.

Where The Hays Group is the controlling employer (for example, on a Hays-managed site), Hays communicates this Plan's site-specific procedures to subcontractors at the pre-job conference and posts them at the site.

4.2 Public-Access Worksites

Many Hays Group jobsites are open to the public (roadway work, sidewalk work, traffic control zones). The Plan includes heightened Type 1 and Type 2 hazard assessment for public-access sites, including: traffic control sign placement and visibility; crew member isolation minimization; shift timing to avoid high-risk hours where practical; vehicle use for driver separation where needed; and communication methods (radios, cell phones) for crew members.

5. Reporting and Emergency Response Procedures

5.1 Reporting a Workplace Violence Incident

Any employee who experiences or witnesses workplace violence, or a threat of workplace violence, must report immediately using the following hierarchy:

If there is imminent danger to life or safety, call 911 first. Then notify a supervisor.

Notify the foreman or immediate supervisor. The supervisor must notify the Corporate Safety Manager.

Notify the Corporate Safety Manager (Sergio Robles)

Notify HR (Brian Grijalva or Desiree Tapia) within 24 hours.

Threats that fall under Type 4 (personal-relationship violence reaching the worksite) should also be reported to HR, who will assist with safety accommodations and, where appropriate, request a temporary restraining order on behalf of the employee consistent with Code of Civil Procedure § 527.8.

Reports may be made orally, in writing, by email, by text, or anonymously. Retaliation against any employee who makes a good-faith report is strictly prohibited.

5.2 Emergency Response

Active threat: employees should prioritize personal safety — evacuate if a safe path exists; shelter and lock down if evacuation is not possible; fight only as a last resort. Follow jobsite-specific emergency procedures posted at each site.

Medical response: designated first-aid responders begin care immediately. Call 911 for injuries. The injured will be transported to medical care facilities.

Securing the scene: after the immediate threat is resolved, the supervisor and Safety Manager work with law enforcement to secure the area and preserve evidence.

Employee support: HR coordinates access to the Employee Assistance Program (EAP through Magellan Healthcare) and, where needed, time off.

5.3 Post-Incident Investigation

After any workplace violence incident, a post-incident investigation is conducted by the Safety Manager together with HR:

- Interview the involved employee(s) and witnesses;
- Document the facts (date, time, location, sequence);
- Classify the incident (Type 1–4);
- Identify contributing factors and hazards;
- Identify corrective actions needed (training, physical changes, policy changes, personnel actions);
- Enter the incident in the Violent Incident Log (see Section 9);
- Report as required to law enforcement, Cal/OSHA (serious injury), and insurer.

6. Hazard Identification and Evaluation

6.1 Initial Hazard Assessment

The Corporate Safety Manager conducts an initial workplace violence hazard assessment for: (a) each fixed Hays Group workplace (corporate office, yards); (b) each category of jobsite (public works roadway, private commercial, federal/DOD, traffic control active work zone, etc.); and (c) each job category (office, field, driver, dispatcher, management).

The assessment considers: physical layout and access control; cash handling (minimal at Hays); isolated work (single workers, night shifts); high-crime-area work; communication methods available; and prior incident history.

6.2 Ongoing Site-Specific Assessment

At each new jobsite, the Project Supervisor completes a brief site-specific hazard assessment as part of the pre-job review. Site-specific concerns are documented on the PTP and communicated to the crew at the first Tailgate.

6.3 Periodic Reassessment

The Corporate Safety Manager reassesses hazards:

- Annually, as part of the Plan review;
- After any workplace violence incident at a Hays Group site;
- When a new type of job or workplace is added;
- When new information indicates a change in risk (e.g., credible threat information from law enforcement).

6.4 Correction of Identified Hazards

Identified hazards are corrected using the hierarchy of controls:

- Elimination — where possible, remove the hazard (e.g., reschedule high-risk work to different hours);
- Engineering controls — physical changes (barriers, lighting, alarms, GPS tracking, radios);

- Administrative controls — policy and procedure changes (minimum crew sizes, check-in requirements);
- Personal protective equipment and training where other controls are not feasible.
- Corrective actions are documented with completion dates and verified by the Corporate Safety Manager.

7. Training

7.1 Training Delivery

Training is delivered through an online learning management system (LMS) module, allowing tracking, completion records, and Spanish-language availability. In-field reinforcement is provided by foremen during Tailgate meetings (quarterly WVPP refresher topic).

7.2 When Training is Provided

Initial training: within the first thirty (30) days of employment, and before the employee is assigned to field work where Type 1 or Type 2 hazards are present;

Annual refresher training: every twelve (12) months from the initial training date;

New-hazard training: when new workplace violence hazards are identified (new job type, new jobsite type, new credible threat information);

Post-incident: following any reported workplace violence incident, affected crews receive focused retraining.

7.3 Training Content

Training covers, at minimum:

- The Plan itself, including how to access it and whom to contact;
- Definitions of workplace violence (Types 1–4) with Hays-specific examples;
- Employee rights under Labor Code § 6401.9, including the right to report without retaliation;
- Hazards specific to the employee's job, and applicable controls;
- Warning signs of potential violence and de-escalation techniques;
- Reporting procedures (how, to whom, what to document);
- Emergency response procedures (active threat, evacuation, shelter, medical);
- Resources available — EAP, HR, and outside resources;
- How to review the Violent Incident Log and report inaccuracies.

7.4 Recordkeeping

Training records (employee name, date, topics, trainer, materials used) are maintained by HR for a minimum of one (1) year for standard training records; five (5) years for training records tied to incidents. Records are available for Cal/OSHA inspection.

8. Communication Procedures

Consistent with Labor Code § 6401.9(c)(4), The Hays Group maintains effective two-way communication about workplace violence hazards and the Plan:

- Plan posting: the current Plan is posted at every California office, yard, and active jobsite trailer, and is available on request from HR. An electronic copy is available to employees via the Company portal.
- Language access: the Plan is available in English at rollout; a Spanish version will be provided in a subsequent phase to match the Company's Spanish-language rollout for other materials.
- Acknowledgment: every California employee acknowledges receipt of the Plan at rollout and at hire. Acknowledgment records are maintained by HR.
- Updates: material changes to the Plan are communicated in writing to all employees, and are addressed in Tailgate meetings within thirty (30) days of adoption.
- Feedback channels: see Section 3.2.

9. Violent Incident Log

The Hays Group maintains a Violent Incident Log consistent with Labor Code § 6401.9(d). The Log records every workplace violence incident, whether or not an injury occurred, and retains records for at least five (5) years.

9.1 Required Log Contents

For each incident, the Log records:

- Date, time, and location of the incident;
- Workplace violence type (Type 1, 2, 3, or 4);
- Detailed description of the incident;
- Classification of circumstances (e.g., physical attack, verbal threat, weapon involved, injury sustained, property damage);
- Consequences of the incident, including actions taken to protect employees and whether law enforcement was contacted;
- Information about the person(s) involved (to the extent available and appropriate);
- Identification of witnesses (if any) and their statements;
- Corrective actions taken;
- Name and title of the person completing the Log entry.
- Personal identifying information of victims is omitted from copies provided to Cal/OSHA or in response to employee requests to review the Log.

9.2 Employee Access to the Log

Employees and their representatives have the right to review and receive copies of the Violent Incident Log within fifteen (15) calendar days of a written request, at no cost. Requests are directed to HR.

10. Plan Review and Recordkeeping

10.1 Annual Review

This Plan is reviewed at least annually by the Plan Administrator and the Corporate Safety Manager, with employee input as described in Section 3.3. The review date, participants, and any amendments are documented and retained.

10.2 Event-Triggered Review

The Plan is also reviewed and updated, as needed:

- When a deficiency is observed during implementation;
- Following any workplace violence incident;
- When operations change in a way that creates new or different workplace violence hazards;
- When Cal/OSHA or other authority issues new guidance or requirements.

10.3 Retention Periods

Plan and revisions	As long as the Plan is in effect, plus five (5) years after retirement or superseding
Training records	Minimum one (1) year for standard; five (5) years when tied to an incident
Hazard identification and correction records	Five (5) years
Violent Incident Log entries	Five (5) years
Annual review minutes	Five (5) years

Records are maintained by HR and are available for Cal/OSHA inspection during normal business hours.

Appendix A — Violent Incident Log Entry Template

Complete one entry for each incident. Submit to HR within 24 hours of notification. Omit victim personal identifying information from copies shared beyond HR/Safety/legal.

Entry Number	
Entered By (Name / Title)	
Date of Entry	

Date and Time of Incident	
Location (Site / Address)	
Workplace Violence Type (1 / 2 / 3 / 4)	
Description of Incident	
Weapon or Instrument Involved (Y/N — describe)	
Injuries (Y/N — describe; medical treatment?)	
Property Damage (Y/N — describe)	
Persons Involved (roles only; identifying info in confidential file)	
Witnesses (names and statements — confidential supplement)	
Immediate Actions Taken	
Law Enforcement Contacted? (Agency / Report #)	
Corrective Actions Planned / Completed (with dates)	
Employee Support Offered (EAP, leave, accommodation)	
Cal/OSHA Reporting (if required)	
Plan Administrator Signature / Date	

Acknowledgment

Employee Signature	*Date*
Printed Name	*Entity / Position*